

Contentious Chamber

Decision on the merits 07/2025 of January 15, 2025

File number: DOS-2020-02815

Subject: Investigation into Mediahuis regarding the transfer of personal data to a joint venture following an asset deal for the "Jobat" activities and the processing of subscriber data

The Contentious Chamber of the Data Protection Authority, composed of

Mr. Hielke HIJMANS, President, and Messrs. Jelle Stassijns and Christophe Boeraeve, Members;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Having regard to the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Having regard to the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant", and;

The defendant: Mediahuis NV, whose registered office is located at [...], and whose company number is

[...],

represented by

Master JAN CLINCK and

Master GERRIT VANDENDRIESSCHE, hereinafter referred to as "the defendant".

Decision on the merits 07/2025 — 2/40

DECISION ON THE MERITS 07/2025 OF JANUARY 15, 2025 1

I.

Facts and procedure

..... 3

II.

Reasoning 5

II.1.

Preamble - presumed abuse of rights during the filing of the complaint..... 5

II.2.

Archiving of complaints related to the processing of subscriber data (retention periods, information obligations, and accuracy of personal data) 8

II.3.

Transfer of personal data to a joint venture for the "Jobat" activities: qualification of the processing and legal basis

..... 10

II.3.1.

Investigation by the Inspection Service 10

II.3.2.

Defendant's viewpoint 11

II.3.3.

Assessment by the Contentious Chamber 12

a)

Visualization of the Mediahuis NV - HORS BV asset deal

12

b)

The transfer constitutes a distinct processing operation within the meaning of Article 4.2 of the GDPR.

..... 14

d)

Article 6.1.f) of the GDPR as a valid legal basis for the transfer - no violation 20

e)

Article 6.1.f) of the GDPR requires prior analysis and documentation - violation 25

II.4.

Transparency and information obligations regarding the creation of a joint venture 26

II.4.1.

Investigation by the Inspection Service 26

26

II.4.2.

Defendant's viewpoint 26

II.4.3.

Assessment by the Contentious Chamber 27

a)

Preliminary: the alleged lack of precision of the alleged violations 27

b)

Transparency and information obligations: principles and legal provisions 28

c)

Need for transparency and information for the disputed transfer 30

d)

Assessment of the concrete communication of information during the disputed transfer - violation 31

31

III.

Measures 33

33

III.1.

Particular considerations regarding the administrative fine: constructive collaboration of the defendant and its DPO 33

33

III.2.

Reprimands 35

III.3.

Injunction to comply with the processing 35

IV.

Provisional execution 36

V.

Publication of the decision 38

Decision on the Merits 07/2025 — 3/40

I. Facts and Procedure

1.

The complaint concerns several grievances raised by the complainant against the defendant, particularly after the complainant gained access to the processing and personal data that the defendant processed about him. This notably includes the retention periods applied to certain personal data, as well as the transfer of the complainant's personal data to a new entity for activities previously carried out exclusively by the defendant.

2.

This case follows a previous case (DOS-2019-06505), in which the Litigation Chamber ordered the defendant to grant access to personal data to the same complainant, based on a prima facie assessment of the facts included in the case. The defendant subsequently granted access to the

complainant.

3.

On May 14, 2020, the complainant filed a complaint with the Data Protection Authority against the defendant.

4.

On June 16, 2020, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Litigation Chamber pursuant to Article 62, § 1 of the LCA.

5.

On July 13, 2020, the Litigation Chamber decided to request an investigation by the Inspection Service, pursuant to Articles 63, 2° and 94, 1° of the LCA.

6.

On July 13, 2020, in accordance with Article 96, § 1 of the LCA, the request from the Litigation Chamber to conduct an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.

7.

On June 8, 2021, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was forwarded by the Inspector General to the President of the Litigation Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains various findings:

1. There is no violation of Articles 5.1 a), 12, and 13 of the GDPR regarding the retention periods for several categories of personal data and the obligation to inform regarding these retention periods. In light of the referral by the Litigation Chamber (Document 3) and in accordance with the principle of proportionality of Article 64, § 2 of the LCA, the Inspection Service declares that it does not rule on the legality or otherwise of the duration of the retention periods applied;

1

Decision

of

the

Litigation

Chamber

06/2020

of

March 25,

2020,

available

via

the

following

link:

<https://gegevensbeschermingsautoriteit.be/publications/bevel-nr.-06-2020.pdf>.

Decision on the Merits 07/2025 — 4/40

2. There is no violation of Article 33 of the GDPR;

3. The transfer by the defendant of the complainant's personal data and that of other affected individuals related to the "Jobat" services to House of Recruitment Services BV ("HORS" or "HORS BV") constitutes a processing activity for which there was no valid legal basis, resulting in a violation of Article 6 of the GDPR;

4. The transfer of the complainant's personal data and that of other affected individuals to HORS BV was not sufficiently transparently notified to the affected individuals, such that this processing activity by the defendant constitutes a violation of Articles 5.1 a), 12, and 13 of the GDPR. On April 5, 2022, the Litigation Chamber decided, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be dealt with on the merits.

8.

On April 5, 2022, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

9.

In the letter of April 5, 2022, the defendant was informed that the Inspection Service pointed out violations in two of its findings. Firstly, it raised a presumed violation of Article 6 of the GDPR concerning the legality of the processing related to the transfer to third parties. Secondly, it raised a presumed violation of the obligations of information and transparency under Articles 5.1 a), 12, and 13 of the GDPR following this same transfer to third parties.

10.

On April 7, 2022, the defendant requested a copy of the file (Article 95, § 2, 3° of the LCA), which was transmitted to them on April 13, 2022.

11.

On April 7, 2022, the defendant also agreed to receive all communications related to the case electronically and expressed its intention to exercise the possibility of being heard, in accordance with Article 98 of the LCA.

12.

On May 17, 2022, the Litigation Chamber received the response conclusions from the defendant.

13.

The Litigation Chamber did not receive any reply conclusions from the complainant.

14.

On June 28, 2022, the Litigation Chamber received the reply conclusions from the defendant. For the readability of the decision, the arguments made by the defendant therein are included below in the "reasoning" section of this decision.

15.

On October 18, 2024, the parties were informed that a hearing would take place on November 5, 2024.
Decision on the Merits 07/2025 — 5/40

16.

On November 5, 2024, the parties are heard by the Contentious Chamber.

17.

On November 8, 2024, the minutes of the hearing are submitted to the parties.

18.

On November 19, 2024, the Contentious Chamber receives remarks from the defendant regarding the minutes, which it decides to include in its deliberation.

II. Motivation

II.1. Preamble - presumed abuse of rights upon filing the complaint

19.

During the proceedings, the defendant raises the issue that the complainant filed the complaint solely to harm her. According to the defendant, this use of the right to complain constitutes a form of abuse of rights.

20. Indeed, in Belgian law, the exercise of a subjective right that aims solely to harm the opposing party, or the exercise of a right that is likely to cause or causes disproportionate harm, can constitute an abuse of rights. In European law, there is also a prohibition on abuse of rights under Article 54 of the Charter of Fundamental Rights of the European Union.

21.

In this regard, the defendant cites several elements that, according to her, would indicate an abuse of rights in the exercise of the right to complain. The Contentious Chamber examines these various elements and concludes that, in this case, there can be no question of an abuse of rights.

22.

Firstly: various statements made by the complainant regarding the defendant and several of her collaborators—in which the complainant often uses language that can be perceived at the very least as rude—may give the impression that the complainant, in addition to exercising his subjective rights, also

aims to harm the defendant.

23.

However, the personal data of the complainant were indeed processed by the defendant, and the grievances expressed by the complainant in his complaint are linked to processing that undoubtedly originates (in part) from events prior to the aforementioned statements regarding the defendant and her collaborators, and also prior to the filing of the complaint with the Data Protection Authority (DPA). It cannot be asserted that, in this case, the exercise of the right to complain serves no legitimate purpose beyond any possible intention to harm.

24.

Moreover, a closer reading of the exchanges between the complainant and the defendant, of which the latter selectively cites excerpts, shows that the complainant has

2

See, among others, Cass. S.21.0071.F, available via the following link:

<https://juportal.be/JUPORTAwork/ECLI:BE:CASS:2022:ARR.20220425.3F.5>

FR.pdf?Version=1652708778; Cass., C.13.0033.N available via:

<https://juportal.be/JUPORTAwork/ECLI:BE:CASS:2013:ARR.20131128.6.NL.pdf>.

Decision on the merits 07/2025 — 6/40

effectively reported issues with certain activities related to the processing of his personal data.

25.

Consequently, the complainant indeed has an interest in filing the complaint. The fact that this complaint is "colored" by the language used by the complainant prior to the filing of the complaint does not detract from the fact that the disputed personal data processing originates, at least in part, in tempore non suspecto and that the complainant may feel aggrieved by these processes.

26.

As stated by DE BOECK and VERMANDER: "When other intentions can be indicated, the intention to harm is not sufficient ipso facto to conclude to an abuse of rights, which is clearly the case when the intention to harm is the sole motive for the action."³

[Translator's Note: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation]

27.

The Court of Justice has already emphasized that the reason for exercising the right of access under Article 15 of the GDPR does not need to be justified to the data controller.⁴ In this regard, the Court has also stated that the existence of "another purpose" for exercising a right provided by the GDPR other than that mentioned in the preamble of this Regulation is not sufficient to reject the request.⁵ Mutatis mutandis, the Contentious Chamber notes that the fact that one of the motives for filing the complaint is to cause a harmful effect cannot in itself lead to the rejection of the complaint.

28.

The Contentious Chamber considers that the fact that one of the complainant's motives for filing a complaint would be (i) to cause harm, or (ii) to cause damage to the defendant, does not in itself exclude the exercise of the right to complain, given that there are evidently also other (legitimate) motives underlying the exercise of the right to complain.

29.

Secondly: the fact that the complainant stated, to the DPA, that he would find a "financial" sanction appropriate is not sufficient in itself - nor in combination with the other elements recalled in this section - to speak of an abuse of rights. It often happens that complainants request a specific sanction. This does not mean that the sanction they claim must be examined. As confirmed by the Court of Justice, it is indeed the responsibility of the supervisory authority to determine the appropriate measures.⁶

³ DE BOECK, A., and VERMANDER, F., "Abuse of rights in contract law: the exercise of rights restricted" in ROZIE, J., RUTTEN, S., VAN OEVELEN, A. (eds.), *Abuse of Rights*, Antwerp, Intersentia, (29)40 - § 13; see also MEIRLAEN, M., *Unwritten legal limits – Prohibition of evasion of legal rules, fraus omnia corrumpit and prohibition of (legal) abuse*, Antwerp, Intersentia, 2022, §§ 257-261.

4 Judgment of the Court of Justice of the European Union of October 26, 2023, FT v. DW, C-307/22, see specifically § 38.

5 Ibid., § 43; emphasis and bolding in the text by the Contentious Chamber.

6 CJEU, Judgment of September 26, 2024, TR v. Land Hessen, C-768/21; § 37: "Thus, the Court has already ruled that the choice of the appropriate and necessary means falls within the competence of the supervisory authority..."

Decision on the merits 07/2025 — 7/40

30. Thirdly, the absence of prior exercise of rights (such as the right to object or the right to erasure of data) is not a decisive reason for not addressing a complaint. Depending on the circumstances, it may even not be necessary for a person's personal data to be processed for a complaint to be examined by a supervisory authority - despite some previous legal discussions on this matter. The fact that a data subject has not exercised rights with a data controller may, however, play a role in assessing the policy to be followed for dismissing a complaint.

31.

Finally, the fact that the complainant may have only reluctantly responded to the requests of the Inspection Service is not, in itself or in conjunction with the other elements cited in this section, a sufficient factor to consider that the sole motive for filing the complaint was to cause harm or disproportionate damage.

32.

In summary, there is clearly no exclusive intent to harm through the exercise of the right to complain, and the exercise of the right to complain does not provide the complainant with a disproportionate advantage compared to the harm caused to the defendant. The fact that the complainant exercises their right to file a complaint in accordance with Article 77 of the GDPR (with the subsequent processing of this case) cannot indeed be considered a (disproportionate) advantage. There is also no disproportionate harm to the defendant if the complainant's advantage consisted of obtaining moral redress through a potential sanction against the defendant, the threshold for assessing the disproportionate nature of the exercise of the right being high.

33. To judge otherwise would indeed result in permanently denying access to justice to any person who qualifies as a data subject in cases where they may have made statements indicating an intent to harm, while there may also be genuine grievances regarding the processing of personal data.

7

Cass., C.20.03223.N, available via the following link:

<https://juportal.be/JUPORTAwork/ECLI:BE:CASS:2021:ARR.20211007.1N.4 NL.pdf>; § 6: "By considering on the basis of these grounds that a violation of Article 5, paragraph 1, c), of the regulation is not established and by annulling the contested decision of the applicant, while it is not required that the personal data of the complainant have been actually processed for the applicant to impose corrective measures or an administrative fine in the context of a complaint, after having established the existence of a practice leading to a violation of the principle of minimal data processing, the appellate judges did not legally justify their decision." (emphasis by the Contentious Chamber).

8 See also Contentious Chamber, decision 113/2024 of September 6, 2024 in DOS-2023-03279, available via the following link: <https://gegevensbeschermingsautoriteit.be/publications/beslissing-ten-gronde-nr.-113-2024-van-6-september-2024.pdf>, § 99. [Translator's note: available in Dutch only]

9 Regarding the balancing of interests, see Cass. February 3, 2017, AR C.16.0055.N, available via the following link: <https://juportal.be/JUPORTAwork/ECLI:BE:CASS:2017:ARR.20170203.1 FR.pdf>; See HALLEMESCH, N. (2018). Comments on Book 6, Article 7 ("Prohibition of abuse of rights") in the context of the public consultation on the Reform of the Civil Code, available via the following link: [https://lirias.kuleuven.be/1988591\(=en](https://lirias.kuleuven.be/1988591(=en) [Translator's note: available in Dutch only].

10 MEIRLAEN M., Unwritten legal limits – Prohibition of evasion of legal rules, *fraus omnia corrumpit* and prohibition of (legal) abuse, Antwerp, Intersentia, 2022, 342, § 263, as well as the case law of Cassation cited therein.

Decision on the Merits 07/2025 — 8/40

34. The situation could have been different if the complainant had deliberately incited the processing of

their personal data and, for example, "provoked" a violation in order to exercise their right to lodge a complaint. In this way, the circumvention of the purpose of the right to complain would be evident as the circumstances of the processing would have been artificially created with a view to filing the complaint.¹¹ This is not the case here.

35. For all these reasons, the exercise of the right to complain by the complainant does not constitute an abuse of rights.

II.2. Archiving of Complaints Related to Subscriber Data Processing (Retention Periods, Information Obligations, and Accuracy of Personal Data)

36. First, the complainant raised a number of complaints in (the annexes of) their complaint regarding various alleged violations of data protection legislation. Thus, certain personal data would be significantly outdated. This includes personal data such as old postal addresses of the complainant, as well as old email addresses of the complainant. Some personal data (related to participation in contests) also appeared to be outdated, according to the complainant.

37. In this regard, the complainant suggests that the principles of data minimization (Article 5.1.c of the GDPR) and storage limitation (Article 5.1.d of the GDPR) have not been respected by the defendant, and that the long retention would be disproportionate. In its investigation, the Inspection Service also referred to Article 25 of the GDPR concerning the prior determination of retention periods.

38. Second, the complainant asserts that certain information regarding a visit to an event was not retained in the correct category of personal data. In this context, the complainant suggests that certain personal data are retained for a disproportionate duration and that the principle of data minimization is also not respected in this regard.

39. Third, the complainant contests the accuracy of certain personal data, claiming not to be subscribed to any of the newspapers published by the defendant.

40. The Inspection Service examined these aspects of the complaint. In this context, exchanges with the data protection officer ("DPO") of the defendant took place. On this occasion, the DPO explained in detail what the retention period is.

11 See for an application of the principle of abuse of rights: Decision of the Litigation Chamber 112/2024 of September 6, 2024, available via the following link: <https://gegevensbeschermingsautoriteit.be/publications/beslissing-ten-gronde-nr.-112-2024-van-6-september-2024.pdf> [Note: available only in Dutch].

Decision on the merits 07/2025 — 9/40

applied for what type of personal data and where this information is available to the data subjects.

41.

According to the responses from the DPO, this information regarding retention periods is available through a layered approach for any data subject who requests or seeks the information (via, among others, the privacy policy on the website). Thus, for identification data, the defendant applies a retention period of 10 years "after the end of the customer relationship" [Translator's Note: the quoted passages from the file are translated freely by the Translation Service of the Data Protection Authority, in the absence of an official translation].

42.

The Inspection Service concludes, on the one hand, that in light of the aforementioned elements, the defendant does not fail in its obligations of information and transparency. On the other hand, the Inspection Service specifies that regarding the retention of certain personal data such as old email addresses, the retention period has not been exceeded.

43. The Litigation Chamber did not offer the defendant the opportunity to defend itself concerning the aforementioned elements but simply invited it to present defenses regarding the transfer of personal data to HORS BV and the related obligations of information and transparency.

44. Given the large number of complaints submitted to it, the Litigation Chamber does not consider it appropriate to further examine the aforementioned elements related to (i) the lawfulness of the processing of personal data (subscriber data and others) of the complainant by the defendant, (ii) compliance with the principle of data minimization for the personal data of the complainant (subscriber data and others), (iii) the obligations of transparency and information during the processing of the

personal data of the complainant, and (iv) compliance with the principle of accuracy of the personal data of the complainant.

45. In this regard, the Litigation Chamber particularly considers that the Inspection Service did not find any violations concerning these elements, or at least closely related elements. The Litigation Chamber focuses instead on the range of instruments at its disposal to enforce the regulation on the elements of the complaint and the subsequent investigation by the Inspection Service that it identifies as the most relevant.

12 Except for the lawfulness of the transfer by the defendant to HORS of personal data related to the Jobat services, see *infra*, section II.3.

13 Except for the obligations of transparency and information related to the transfer by the defendant to HORS of personal data related to the Jobat services, see *infra*, section II.4.

Decision on the merits 07/2025 — 10/40

II.3. Transfer of personal data to a joint venture for the activities of "Jobat": qualification of the processing and legal basis

46. In his complaint, the complainant asserts that he never gave his explicit consent for the use of his data through Jobat in the joint venture of the defendant and DPG Media nv.

47.

The complainant refers in this regard to the creation of the limited liability company HORS. According to the publication of the articles of incorporation in the Belgian Official Gazette, this company was founded in June 2019.

II.3.1. Inspection Service Investigation

48. As part of its investigation, the Inspection Service thoroughly examined the transfer of personal data from the defendant to HORS.

49. In this context, the Inspection Service sent a number of questions to the defendant's DPO.

50. The Inspection Service notes that the defendant believes that there should not be a separate legal basis for the transfer. The Inspection Service summarizes the reasons put forward in this regard in its report by the defendant's DPO as follows:

"a. The contested transfer of personal data would not be processing but an operation; b. The disputed transfer of personal data would rely on the initial legal basis;

c. The purposes of the processing of data related to Jobat users would not have changed; only the identity of the data controller would have changed;

d. The disputed transfer of personal data would have no impact on rights and freedoms."

51.

Regarding the first aspect, the Inspection Service states that the transfer of personal data, a personal data database, by the defendant to HORS constitutes processing within the meaning of Article 4.2 of the GDPR.

52.

Regarding the second aspect, the defendant's DPO claims that HORS takes over the "legal obligation" (Article 6.1.c) of the GDPR) to process personal data in the context of the private placement and that the processing can continue under the contractual basis with the data subject (Article 6.1.b) of the GDPR). The Inspection Service disputes this assertion and states that a separate legal basis is required for this distinct processing.

14 Administrative file, document 35, annex 2 of the response from the DPO, also available via the following link:

<https://www.ejustice.just.fgov.be/tsv/pdf/2019/06/21/19322205.pdf> (Translator's Note: available only in Dutch).

Decision on the Merits 07/2025 — 11/40

53. Regarding the third aspect, the Inspection Service states that the mere change in the quality of the data controller and the fact that it would be a continuation of the (same) processing is not sufficient to demonstrate the lawfulness of the contested processing.

54. Concerning the fourth aspect, the Inspection Service examines the potential impact on the rights

and freedoms of users in light of Article 6.1(f) of the GDPR as a potential valid legal basis and states in this regard: "The balancing test cannot be conducted theoretically and abstractly but also depends on the concrete case and the context presented." According to the Inspection Service, Article 6.1(f) of the GDPR is therefore not respected at the level of this balancing test. The Inspection Service states the following: "According to the Inspection Service, the preservation of rights and freedoms - including the right to object - has not been sufficiently examined in light of the reasonable expectations of the data subject to demonstrate the lawfulness of the contested processing."

II.3.2. Defendant's Perspective

In its conclusions, the defendant briefly puts forward the following arguments.

55. First, the defendant argues that explicit consent was not necessary for the use of data via Jobat within the defendant's joint venture with DPG Media (HORS):

- a) "Explicit" consent is a concept under Article 9.2 of the GDPR, but the defendant believes that it does not process special categories of personal data, thus rendering this provision inapplicable;
- b) The defendant had other options for the transfer to HORS, namely the performance of the contract (Jobat) with the affected users and compliance with its legal obligations (respectively Articles 6.1(b) and 6.1(c) of the GDPR);
- c) In this case, the defendant considers that consent can never constitute a valid legal basis, as it cannot be granted "freely" – the defendant refers in this regard, among other things, to decisions of the Litigation Chamber;
- d) Civil law allows one party to assign its contract without needing to obtain the explicit consent of the initial opposing party for this purpose;

56. Second, the defendant considers that the transfer consisted only of an "operation" and not of "processing" in the sense of (Article 4.2) of the GDPR. The transfer was therefore lawful, and the defendant further specifies the following:

Decision on the Merits 07/2025 — 12/40

- a. The defendant states that the purpose of the processing is the performance of the contract and that the transfer is therefore part of this purpose and thus constitutes only an operation within a broader processing context. To this end, the defendant refers in particular to doctrine and case law, as well as to decisions of the Litigation Chamber and documents from the Data Protection Authority - which establish or would establish a similar distinction between the notions of 'operation' and 'processing';
- b. For the defendant, the transfer to HORS was "necessary" for the continuation of Jobat services and for compliance with legal obligations regarding placement (which had both initially been carried out lawfully by the defendant). The defendant refers to the "initial lawfulness" of the processing of personal data and the fact that HORS takes over these activities, and more specifically:
 - i. to the assumption of contractual obligations and processing under Article 6.1(b) of the GDPR by HORS;
 - ii. to the legal obligations (Article 6.1(c) of the GDPR) by HORS "as a private employment agency."

57. Thirdly, "in the alternative," the defendant positions itself regarding Article 6.1(f) of the GDPR:

- a) The defendant asserts that the Inspection Service does not justify why the interests of the data subjects would outweigh the interests of the company in the context of a transaction governed by corporate law;
- b) The defendant states in the alternative - although it does not believe that the transfer should be based on a distinct legal basis - that in this case, Article 6.1(f) of the GDPR could constitute a valid legal basis;
- c) The defendant itself applies the three-step test to conclude that Article 6.1(f) of the GDPR may apply, if applicable.

II.3.3. Evaluation by the Litigation Chamber

- a) Visualization of the asset deal Mediahuis NV - HORS BV

13/40

Diagram I 15

15 The diagram in this decision is created by the Litigation Chamber for the better understanding of the

decision by the parties and the third-party reader; in case of doubt between the diagram and the text of the decision, the text prevails in any case to convey the reasons for the decision.

14/40

b) The transfer constitutes a distinct processing operation within the meaning of Article 4.2 of the GDPR.

58. The Contentious Chamber first notes that the transfer (see Diagram I, point 5) of the personal data of the complainant and other data subjects to HORS constitutes processing within the meaning of the GDPR.

59. Firstly, HORS is another legal entity, referred to as a joint venture, created by the defendant on one side and DPG Media NV on the other. The HORS company was established in 2019.¹⁶ The fact that the defendant would hold a majority stake¹⁷ in HORS and that HORS would thus belong to the 'Mediahuis group' (for example, in terms of branding and identity) does not detract from the fact that HORS is a distinct company of which at least one other company is also a shareholder.¹⁸

60. It is also clearly evident from the defendant's arguments that it has well understood and continues to understand the distinction between the two legal entities. The defendant refers to an "asset deal"¹⁹ regarding the transfer of Jobat's activities to the joint venture; in the case of an asset deal, the activities or assets (a portion of the activities or assets) of another company are indeed taken over.²⁰

61. Therefore, this is a transfer of assets (such as contracts and the related personal data) from one company to another. This situation differs from that of a share deal, where there is merely a change in shareholding, but where the data controller remains the same.²¹

62. Secondly, it is indisputable that HORS assumes responsibility for the processing of personal data in the context of the execution of Jobat's services after the transfer. It is also explicitly stated in the response of the Data Protection Officer ("DPO") to the Inspection Service that the defendant acknowledges that HORS is a distinct data controller - even if the personal data is stored on IT infrastructure in the possession or under the control of the defendant.²²

16 Administrative file, defendant's reply conclusions, p. 22: HORS was established on June 16, 2019; also administrative file, document 35, annex 1: the defendant's DPO provided the articles of incorporation - the deed was executed on June 19, 2019. In any case, there is therefore no doubt about the jurisdiction of the APD *ratione temporis* regarding the transfer after May 25, 2018.

17 During the hearing, it is mentioned that the defendant would hold 51% of the shares in HORS; this is not contradicted in the remarks on the hearing minutes.

18 See: "Regardless of the connections between the various companies, each company in the group has independent obligations to ensure, among other things, an adequate level of data protection in accordance with the GDPR."

in VOIGHT, P. and VON DEM BUSSCHE, A. EU General Data Protection Regulation (GDPR), Springer-Verlag GmbH, Berlin, 2024, 232; free translation into French of the free translation into Dutch of the following passage in German: "Unabhängig von der Verbundenheit der verschiedenen Unternehmen treffen jees Gruppenunternehmen eigenständige Verpflichtungen, um u.a. ein nach der DSGVO angemessenes Datenschutzniveau zu gewährleisten."

19 Administrative file, hearing minutes of November 5, 2024.

20 DE SMEDT, S., and CAPRONI, M., "Processing of personal data in the context of M&A; transactions" in DE SMEDT, S., and CAPRONI, M., Practical Guide to Privacy in Business, Mechelen, Wolters Kluwer Belgium, 2023, (261)261.

21 Ibid.

22 Administrative file, document 25, response by the DPO to question 2.

Decision on the Merits 07/2025 — 15/40

For this aspect, a subcontracting agreement was concluded between the defendant and HORS, given that after the transfer, the defendant acts in this regard as a subcontractor of HORS.²³

63. Thirdly, the Contentious Chamber emphasizes that the fact that the processing at the level of the defendant and HORS concerns similar processing activities (Schema I, processing referred to in points 4 and 6) does not mean that the transfer would not constitute a distinct processing activity (Schema I, processing referred to in point 5). For the qualification of the processing, it does not matter that the

activities remain almost the same and that the processing is carried out for purposes formulated in an identical manner; what is decisive here is the fact that there is a legal transfer of personal data.²⁴ 64. In this regard, the Contentious Chamber emphasizes that it is not because HORS relies or would rely on the same legal basis as that of the defendant that it constitutes the same processing (see Schema I, the processing referred to in points 4 and 6).

65. Fourthly, the Contentious Chamber draws attention to the notion of "necessity" for the execution of processing based on a contract under Article 6.1.b) of the GDPR (see also *infra*, section II.3, item c.2). The Contentious Chamber specifies that the transfer of personal data is not in itself required, for example, for the execution of a contract of the user/person concerned within the framework of Jobat services, which is relevant for the qualification of the transfer as a distinct processing activity.²⁵

66. The Contentious Chamber concludes, based on each of the four preceding elements, that the transfer of personal data resulting from the Jobat activities by the defendant to HORS (Schema I, processing referred to in point 5) constitutes processing within the meaning of Article 4.2 of the GDPR.

c) A necessary legal basis for the transfer as processing

67.

Any processing of personal data must be based on a legal basis within the meaning of Article 6 of the GDPR.²⁶ If the same personal data is processed in different ways, each of these processing activities must fall under one of the lawful bases listed in Article 6.1 of the GDPR.²⁷ Under the GDPR, consent does not benefit

23 *Ibid.*

24 See: "After the creation of HORS BV, [the defendant] sold certain assets of Jobat to HORS BV, including all Jobat user contracts with Mediahuis." Administrative file, document 27, response by the DPO to question 4.

25 Regarding the importance of the purpose criterion for qualification as a processing activity: DE BOT, D., The application of the General Data Protection Regulation in the Belgian context: commentary on the GDPR, the Data Protection Act, and the Data Protection Authority Act, Mechelen, Wolters Kluwer, 2020, § 339 and § 1027.

26 There are no indications or elements showing that particular categories of personal data are processed for which a legal basis under Article 9.2 of the GDPR would be necessary.

27 EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, available via the following link: <https://www.edpb.europa.eu/our-work-tools/documents/public-consultations/2024/guidelines-12024-processing-personal-data-based-en>, § 10. [Translator's note: this document is currently only available in English]

Decision on the merits 07/2025 — 16/40

of no explicit preference; the processing of personal data may be based on one of the six processing bases listed in Article 6.1 of the GDPR.²⁸

c.1.) Article 6.1.c) of the GDPR as a legal basis

68. During the administrative procedure before the Data Protection Authority (DPA) (notably during the investigation by the Inspection Service but also in its conclusions before the Litigation Chamber), the defendant argued that it could (partially) base its processing on Article 6.1.c) of the GDPR, given that both the defendant and (after the transfer) HORS would have the legal obligation "to assist workers in seeking new employment and to assist employers in finding suitable workers [...]"

69. First of all, the Litigation Chamber notes that the defendant cannot base its processing under Article 6.1.c) of the GDPR on what is called a legal obligation of another data controller (namely HORS). Indeed, it is not permitted to process personal data because another data controller is obliged to do so.

70. The Litigation Chamber finds no legal basis for the processing of personal data in the Flemish Decree of December 10, 2010, concerning private placement (M.B. of December 29, 2010, hereinafter "Decree" or "Private Placement Decree") and more specifically in its Article 3.1. A norm that imposes a legal obligation must, on the one hand, specify the concrete purpose for which the mandatory data processing must be carried out and, on the other hand, be clear and precise, so that the data controller should, in principle, not have any discretion regarding how to carry out the personal data processing

necessary to comply with its legal obligation.²⁹ This decree and this provision do not indicate at all that specific personal data must be processed and that the Decree would constitute a legal basis for this purpose.

71. Furthermore, the Decree in question only governs a number of restrictions on the processing of personal data by offices providing private placement services (Article 5, 8°, 12° and 18° of the Private Placement Decree) and even criminal provisions in this regard (notably Article 24, 4° of the Private Placement Decree).

28 Regarding the absence of any hierarchy, see FOCQUET, A., DEPREZ, S., and MANNEKENS, J., Handbook on Data Protection in Depth & in Practice, Heverlee, LeA Publishers, 2024, § 1.14 and § 4.02; See EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, § 1 in fine.

29 DPA, standard opinion No. 65/2023 regarding the drafting of normative texts, available via the following link: <https://www.autoriteprotectiondonnees.be/publications/avis-n-65-2023.pdf>.

Decision on the merits 07/2025 — 17/40

72.

Consequently, the defendant cannot validly invoke this legal basis (Article 6.1.c) of the GDPR) to transfer personal data (related to Jobat activities) to HORS.

c.2.) Article 6.1.b) of the GDPR as a legal basis

73.

Although HORS may take over the defendant's activities and base them on Article 6.1.b) of the GDPR, the execution of the asset deal is not in itself necessary for the fulfillment of the purposes of a user contract (for Jobat) initially concluded between the defendant and each data subject/user.³⁰ In this regard, it is important to note that Article 6.1.b) of the GDPR stipulates that processing must be necessary "for the performance of a contract to which the data subject is a party."³¹

74.

The defendant's choice to create a joint venture and host Jobat's activities there is made for purposes that do not solely coincide with the execution of Jobat's user contracts.³² Therefore, a prior verification of the legality of the transfer must be conducted.³³

75.

Regarding the purposes of the asset deal and the disputed transfer related thereto, the Contentious Chamber further observes that during the proceedings, a press article was produced, containing notably the following passages:

a) "The association does not result from an economic necessity; these are two healthy companies [...], states [Y], commercial director of Jobat Media, who will lead the company resulting from the merger."³⁴

b) [Y, commercial director of Jobat Media] expects significant value creation through the pooling of strengths."³⁵

30 Contrary to: "Processing is necessary insofar as a contract cannot be performed without it." in VOIGHT, P. and VON DEM BUSSCHE, A. EU General Data Protection Regulation (GDPR), Springer-Verlag GmbH, Berlin, 2024, 184; free translation into French of the free translation into Dutch of the following passage in German: "Eine Verarbeitung ist erforderlich, soweit ein Vertrag ohne deren Durchführung nicht erfüllt werden kann."

31 See FOCQUET, A., DEPREZ, S., and MANNEKENS, J., Handbook on Data Protection in Depth & in Practice, Heverlee, LeA Publishers, 2024, § 4.11 regarding Article 6.1.b) of the GDPR: "A strict reading therefore means that this basis generally cannot be used in a B2B context" - free translation into French of the following passage in Dutch: "Een strikte lezing betekent dan ook dat deze grond veelal niet kan worden gebruikt in een B2B-context."

32 Regarding the importance of the purpose limitation principle in the context of interpretation for the execution of a contract, see EDPB, Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) of the GDPR in the context of providing online services to data subjects (v. 2.0.), October 8, 2019, available via the following link: https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_art_6-1-b_adopted_after_public_consultation_fr.pdf, § 16.

33 The doctrine also refers to the (prior) verification of legality in the context of a transfer during the due diligence process in an asset deal: DE SMEDT, S., and CAPRONI, M., "Processing of personal data in the context of M&A; transactions" in DE SMEDT, S., and CAPRONI, M., Practical Guide to Privacy in Business Mechelen, Wolters Kluwer Belgium, 2023, (261)269; also: VANDE VORST, C., "Data protection and GDPR in practice: impact and liability in an M&A; transaction" in CHAUMONT, D., and RAGHENO, N., Data protection & privacy: GDPR in practice / GDPR in practice, Anthemis, 2017, (131)135-6.

34 Administrative file, document 35 "attachment 03_Press articles regarding the establishment of HORS_[...]", referencing the article by DENDOOVEN, P., "Rivals Jobat and Vacature embrace each other in the job market", De Standaard, May 29, 2019, also available via the following link: https://www.standaard.be/cnt/dmf20190528_04435347 [Note: only available in Dutch].

35 Ibid.

Decision on the Merits 07/2025 — 18/40

c) "Data is a gold mine in this context. Through intelligent use of data, Jobat and Vacature.com aim to combine reader profiles with relevant job offers."³⁶

Furthermore, an article published by DGP Media is also provided, in which the following can be read: "This unique reach, combined with a quality content offering and intelligent use of data, gives JOBAT the power to detect not only active job seekers but also latent job seekers."³⁷

76.

These passages further confirm that the transfer did not pursue a purpose based on any necessity (economic or otherwise) for the subsequent execution of contracts with the data subjects, but rather commercial purposes (based on legitimate commercial interests, see below Section II.3 item d) of the defendant).

77.

The European Data Protection Board ("EDPB") has also emphasized that in this context, necessity has an autonomous meaning under Union law and must be assessed in view of the execution of a contract with the data subject.³⁸ The Court of Justice of the European Union has stated in this regard that in this case, processing must be "objectively necessary" for the service to be provided to the data subject³⁹; in other words, it must not only be useful but essential.⁴⁰

78.

In this context, the EDPB explicitly states: "Article 6(1)(b) will not cover [the] processing that is useful[...] even if they are necessary for the other commercial purposes of the data controller."⁴¹ In other words: the necessity of executing a contract with the data subject is independent of the necessity of processing based on the legitimate interests of a data controller (see below, item d) of this section). This is also the case if the processing activity (not necessary) is disclosed to the data subjects at the conclusion of the contract.⁴²

79.

The asset deal is not a contract in which a data subject (in the sense of the GDPR) is a contracting party, and therefore they do not have explicit knowledge of its existence. In this context, it is also the responsibility of the data controller to prove that the

36 Ibid.

37 Administrative file, document 35, "attachment 03_Persartikelen ivm oprichting HORS_[...]", referencing an article on the website dpgmedia.be titled: "DPG Media and Mediahuis launch JOBAT, the talent network."

38 EDPB, Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) of the GDPR in the context of providing online services to data subjects, v. 2.0, October 8, 2019, section 2.5.

39 CJEU, Judgment of July 4, 2023, Meta Platforms, C-252/21, § 98.

40 Ibid., § 99.

41 EDPB, Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) of the GDPR in the context of providing online services to data subjects, v. 2.0, October 8, 2019, § 25, bolded in the text by the Litigation Chamber.

42 Ibid., § 28.

processing is objectively necessary for the execution of a necessary part of the contractual performance for the person concerned, without there being more feasible and less restrictive alternatives.⁴³

80. The aim is indeed not to 'stretch' (i.e., to broaden) the notion of "necessity" so that the disputed transfer fully falls under this notion as processing.⁴⁴ The purpose of the wording of Article 6.1.b) of the GDPR is indeed that the necessity of the processing is assessed with particular attention to the interests of the person concerned within the framework of their contractual relationship.⁴⁵ The starting point for evaluating the necessity of processing for the execution of contractual purposes is therefore not the interests of two commercial actors, as in the case of the creation of a joint venture for commercial purposes.⁴⁶

81. For these reasons, the defendant cannot invoke Article 6.1.b) of the GDPR for the disputed transfer.

82. This does not mean, however, that HORS cannot subsequently validly base the processing of user contracts—given the resumption of activities in light of a commercial transaction (Schema I, transaction, see point 1)—on Article 6.1.b) of the GDPR (Schema I, processing referred to in point 6). However, this concerns a different processing than the disputed transfer (Schema I, processing referred to in point 5).

c.3.) Other legal bases under Article 6 of the GDPR

83. The defendant did not request consent for the transfer, so it is no longer possible to invoke this legal basis (Article 6.1.a) of the GDPR). The defendant cannot indicate any specific legal provision (see Article 6.1.c) of the GDPR) requiring the transfer, nor can it argue that the transfer was necessary for the protection of the vital interests of the persons concerned or other natural persons (see Article 6.1.d) of the GDPR). The defendant also cannot demonstrate that the transfer was necessary for

43 Paraphrase inspired by VOIGHT, P., and VON DEM BUSSCHE, A., EU General Data Protection Regulation (GDPR), Springer-Verlag GmbH, Berlin, 2024, 184, in a freely translated French version of a freely translated Dutch version of the following German passage: "Der Verantwortliche muss daher nachweisen können, dass die Verarbeitung in objektiver Hinsicht unerlässlich ist, um einen notwendigen Bestandteil der Vertragsleistung für die betroffene Person zu erfüllen, wobei es keine praktikableren und weniger einschränkenden Alternativen gibt."

44 Regarding the application of Article 6.1.b) of the GDPR in the context of asset deals in a German context, see also: Datenschutzkonferenz, September 11, 2024, Resolution of the Conference of Independent Data Protection Authorities of the Federal and State Governments of September 11, 2024 – transmission of personal data to the acquirer of a company in the context of an asset deal, available via the following link: https://datenschutzkonferenz-online.de/media/dskb/2024-09-11_Beschluss%20D SK%20Asset%20Deals.pdf.

45 EDPB, Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) of the GDPR in the context of providing online services to the data subjects, v. 2.0, October 8, 2019, section 2.5.

46 Furthermore: "According to the wording of the provision [Article 5.1.b) of the GDPR], the data subject, and not the data controller, must necessarily be a party to the commitment in question that has been made." in VOIGHT, P., and VON DEM BUSSCHE, A., EU General Data Protection Regulation (GDPR), Springer-Verlag GmbH, Berlin, 2024, 185; freely translated from a freely translated Dutch version of the following German passage: "Dem Wortlaut der Vorschrift nach muss zwar die betroffene Person, nicht jedoch der Verantwortliche zwingend Partei des angestrebten Vertragsverhältnisses sein."

the execution of a public interest mission or a mission related to the exercise of public authority vested in it (see Article 6.1.e) of the GDPR). The only valid legal basis on which the transfer can therefore be founded here is Article 6.1.f) of the GDPR.

d) Article 6.1.f) of the GDPR as a valid legal basis for the transfer - no violation

84. Given that the defendant incorrectly considered that the transfer of personal data of users of the Jobat platform was merely an operation and not a distinct processing, it did not identify a legal basis in

advance under Article 6.1 of the GDPR. However, in the context of its conclusions before the Litigation Chamber, the defendant argued in the alternative why it could, in any case, invoke Article 6.1.f) of the GDPR regarding the transfer.

85. In accordance with the case law of the Court of Justice of the European Union⁴⁷ (and as explained in the EDPB Guidelines⁴⁸), three cumulative conditions must be met for a data controller to validly invoke this legal basis in law. The defendant, as the data controller, must be able to demonstrate that: 1) the interests it pursues with the processing can be recognized as legitimate (the "purpose test"); 2) the intended processing is necessary to achieve those interests (the "necessity test"); and 3) the balancing of these interests against the interests, freedoms, and fundamental rights of the data subject weighs in favor of the data controller or a third party (the "balancing test").

a) The purpose test

86. There is a legitimate interest on the part of the defendant for the transfer.

87. Through the commercial transaction, the defendant demonstrates its willingness to host the services related to Jobat within a new company and therefore has an interest in ensuring that, through the transfer of personal data, the Jobat services are hosted within HORS and that the commercial transaction (Diagram I, point 1) can thus take place.⁴⁹ The interest of the defendant is its broader interest or advantage in the context

47 CJEU, October 4, 2024, *Koninklijke Nederlandse Lawn Tennisbond v. Autoriteit*

Persoonsgegevens, C-621-22, §§ 47-56; CJEU, May 4, 2017, C-13/16, *Valsts policijas Rīgas reģiona pārvaldes Kārtības policijas pārvalde v. Rīgas pašvaldības SIA "Rīgas satiksme"*, C-13/16, § 28. See also CJEU, December 11, 2019, *TK v. Asociația de Proprietari bloc M5A-ScaraA*, C-708/18, § 40.

48 EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), V.1.0, October 8, 2024.

49 See also regarding legitimate interest within a group of companies, in particular section 5 of EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), V.1.0, October 8, 2024.

Decision on the merits 07/2025 — 21/40

of the processing activity⁵⁰: this interest consists of enabling the smooth conduct of the commercial transaction (Diagram I, point 1). The purpose of the transfer is the specific reason for the transfer⁵¹, namely to allow the processing to take place within the joint venture (Diagram I, point 6).

88. Within the European Union, the freedom to conduct a business is a fundamental right⁵². In this case, the creation of the joint venture through an asset deal constitutes a legitimate realization of this freedom, in accordance with the relevant provisions (notably those of company law and Belgian civil law)⁵³. In this context, it is an interest that can clearly be linked to the targeted commercial transaction and is therefore real and current.

The interest of the defendant is therefore legitimate - the Court of Justice has recently confirmed that a purely commercial interest can also constitute a legitimate interest within the meaning of Article 6.1.f) of the GDPR.⁵⁴

b) The necessity test

89. The transfer of personal data is necessary to achieve the legitimate interest of the defendant.

90. According to the Court of Justice, the requirement of necessity is an autonomous concept within Union law that must be interpreted in accordance with the objectives of the right to data protection⁵⁵. In this context, the notion of necessity is also closely linked to the principle of data minimization (Article 5.1.c) of the GDPR), as processing can only take place "provided that such processing is carried out within the limits of what is strictly necessary for the realization of this legitimate interest"⁵⁶.

91.

In order to ensure its legitimate interest, the transfer of personal data is necessary for the defendant. It is indeed not possible to effectively pursue the Jobat services without transferring the data of the users of these services (Diagram I: processing at point 6 is not possible without processing at point 5). In this context, necessity is therefore not only important for the success of

50 See EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, § 14.

51 Ibid.

52 Article 16 of the Charter of Fundamental Rights of the European Union; see regarding the importance of the Charter for establishing a "legitimate interest" in particular FRENZEL, E.-M., "DS-GVO Art. 6" in PAAL, B.P., and PAULY, D.A., *Datenschutzgrundverordnung Bundesdatenschutzgesetz*, C.H. Beck, Ed. 3, (108)123-4, §§ 28 et seq.

53 In this sense, it is important to emphasize that the interest in question does not constitute a violation of Union law or that of a Member State, see Judgment of the CJEU, October 4, 2024, *Koninklijke Nederlandse Lawn Tennisbond v. Autoriteit Persoonsgegevens*, C-621/22, see specifically § 49; See EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, § 17, first bullet.

54 Judgment of the CJEU, October 4, 2024, *Koninklijke Nederlandse Lawn Tennisbond v. Autoriteit Persoonsgegevens*, C-621/22, see specifically § 49;

55 EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, § 28, specifically referring to the CJEU judgment of December 16, 2008, *Huber*, C-524/06, § 52.

56 CJEU, Judgment of December 7, 2023, *Schufa Holding*, joined cases C-26/22 and C-64/22, § 88; cf. *ibid.*; CJEU, Judgment of July 4, 2023, *Meta v. Bundeskartellamt*, C-252/21, § 126.

Decision on the merits 07/2025 — 22/40

the commercial transaction (Diagram I, point 1), but also for the purpose of the processing that will take place with the recipient HORS for the execution of user contracts that have been taken over (Diagram I, when the processing at point 4 ceases to exist, it concerns the processing at point 6).

92.

Without the transfer, not only is the execution of user contracts within HORS not possible, but it may also have a negative effect on the further development of the commercial activities of Jobat services. This is not only disadvantageous for the defendant (who would have to account for a devaluation during a sale) and for HORS (who would acquire a service of lesser value). It is also detrimental to the data subject. A reduced commercial activity may lead to a less effective placement rate (e.g., due to a decrease in interested employers) and thus to a less attractive service for the data subject.

c) The balancing test

93. The interests of the defendant are predominant compared to the interests and fundamental rights and freedoms of the data subjects - specifically because they could expect the creation of a joint venture to which personal data could be transferred.

94. Recital 47 of the GDPR preamble states that the balancing test must be carried out "taking into account the reasonable expectations of the data subjects based on their relationship with the data controller."

95. The balancing test is performed by the Contentious Chamber through 4 steps⁵⁷:

- i. Identification of the interests, freedoms, and fundamental rights of the data subjects;
- ii. The impact of the processing on the data subjects, taking into account the nature of the personal data to be processed, the context of the processing, and the consequences of the processing;
- iii. The reasonable expectations of the data subjects;
- iv. The final balancing of the opposing rights and interests, including the consideration of other mitigating measures.

96. The Contentious Chamber examines each of these elements below:

i.

Identification of the interests, freedoms, and fundamental rights of the data subjects:

57 See EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, p. 13 et seq.

Decision on the merits 07/2025 — 23/40

97.

The data subjects have a certain and established interest when a data controller like the defendant decides to carry out a specific processing of their personal data. In this context, it should be emphasized that their personal data is transferred to another data controller than the one with whom they have concluded their user contract for Jobat services. Under Article 8 of the Charter of Fundamental Rights of the European Union, everyone has the right to the protection of their personal

data; this also implies that a data subject has the right to maintain control over their data. Such control must allow data subjects to effectively exercise the rights conferred upon them by the GDPR.⁵⁸

ii.

The impact of the processing on the data subjects, taking into account the nature of the personal data to be processed, the context of the processing, and the consequences of the processing:

98. It should be noted in this regard that there are normally no special categories of personal data involved here - as the defendant has emphasized throughout the proceedings.

The fact that the personal data relates to services linked to professional placement, which also constitutes the context of the processing, implies that the nature of the personal data processed can indeed be sensitive to some extent. Thus, the fact that a data subject has been active at some point on a professional placement website may influence them positively or negatively⁵⁹, for example, such information could be known to their current employer.

99. Regarding the consequences of the processing, it should be observed that the defendant claims that in practice, there are few or no changes for the average user of Jobat brand services. In this case, even the DPO has remained the same, in accordance with the terms agreed upon between the defendant and HORS. In this context, it should be noted that the transfer (Diagram I, point 5) would not cause any direct (additional) negative consequences for the data subjects concerning the intended processing with HORS (Diagram I, point 6).

58 CJEU, Judgment of October 1, 2015, Smaranda Bara et al. (C-201/14), § 33.

59 A potentially negative effect for a data subject is particularly a relevant factor that must be taken into account in the assessment, cf. EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, § 41.

Decision on the merits 07/2025 — 24/40

iii.

The reasonable expectations of the data subjects:

100. The data subjects could indeed expect that their personal data could be transferred in the context of the transfer of services such as those of Jobat to a joint venture - as explicitly and correctly stated in the privacy policy that was also applicable for the asset deal.⁶⁰

In this context, it should be noted that the argument put forward by the defendant during the proceedings, namely that this type of business transaction (cf. Diagram I, point 1) occurs "every day," is not sufficient in itself to assert that the associated processing of personal data falls within the reasonable expectations of the data subjects.⁶¹ In other words: just because something happens every day does not mean that the specific contested processing (transfer) is predictable.

101. In this sense, it would have been preferable for the data subjects to have received, within a reasonable time before the contested transfer, important information on the matter (for example, through an ad hoc update of the privacy policy) in order to be able to object.

iv.

The final balancing of opposing rights and interests, including the taking of other mitigation measures:

102. The final balancing is favorable to the defendant, who could indeed proceed with the transfer of personal data, cf. Article 6.1(f) of the GDPR. In this regard, the Contentious Chamber particularly considers that in practice, the transfer does not significantly change the offering of Jobat services and that the data subjects have always been able to contact the same DPO to exercise their rights, via the channels that were or are still mentioned in the privacy policy. Furthermore, it is important, in the eyes of the Contentious Chamber, that the privacy policy has always mentioned that a transfer to a joint venture was possible. Finally, it can also be specified that the defendant retains a (majority) stake in the joint venture, which means that both de facto and de jure, there remains a certain degree of (indirect) control over the processing of personal data by the defendant.

103. The Contentious Chamber concludes that the contested transfer could rely on Article 6.1(f) of the GDPR and emphasizes, in light of the balancing of interests, - regardless of the presence of a legitimate interest in this case - that the balancing of interests must take into account all interested parties, so that Article 6.1(f) of the GDPR will not always constitute an effective legal basis in the case

of the formation of a

60 This does not prejudice the information obligations that would accompany a specific transfer, cf. Section II.4 of this decision.

61 See EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), October 8, 2024, § 50.

Decision on the merits 07/2025 — 25/40

joint venture.⁶² In this context, reference can particularly be made to transfers where specific categories of personal data are processed, implying that a legal basis under Article 9.2 of the GDPR must also be indicated.

104. Furthermore, the Contentious Chamber specifies that in the context of a transfer such as the one in question, particular attention must be paid to the principles of data minimization (Article 5.1.c) of the GDPR), with the entity transferring personal data also needing to consider the 'active' nature of user contracts, in light of its data retention policy.

e) Article 6.1.f) of the GDPR requires prior analysis and documentation - violation

105. The defendant only examined its legitimate interest for the transfer after the Inspection Service referred to this provision as a possible legal basis for processing⁶³. However, each data controller is required to conduct a thorough assessment of legitimate interests, and as confirmed by the EDPB, Article 6.1.f) of the GDPR cannot simply be considered as a default applicable legal basis.⁶⁴

106. Since the defendant refers subsidiarily to the legal basis but did not conduct the analysis prior to the transfer, it did not comply with Article 6.1.f) of the GDPR.⁶⁵ Indeed, this task falls under the responsibility of the data controller.⁶⁶ In light of its obligations under Article 5.2 of the GDPR, the defendant should also have been able to demonstrate (document) where the legal basis under Article 6.1.f) of the GDPR resided, so there is also a need to establish a violation on this point.⁶⁷

62 See: The authorization [for data transfers] does not constitute a true group privilege, given that a careful balancing of interests must always be carried out concerning all parties involved and for each individual case.” in VOIGHT, P. and VON DEM BUSSCHE, A. EU General Data Protection Regulation (GDPR), Springer-Verlag GmbH, Berlin, 2024, 232; freely translated from the Dutch free translation of the following passage in German: "Nichtsdestotrotz begründet der Erlaubnistatbestand kein wirkliches Konzernprivileg, da eine sorgfältige Interessenabwägung im Hinblick auf alle Beteiligten und für jeden Einzelfall weiterhin stattfinden muss.”

63 In its inspection report, the Inspection Service estimated that the balancing of interests was not favorable to the defendant.

64 EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f) GDPR, V.1.0, October 8, 2024, § 9, § 18 (“... the controller’s obligation to assess and ensure that all of the three cumulative conditions for relying on Article 6(1)(f) GDPR as a legal basis are met for the envisaged processing operations” - freely translated: “(...) the obligation for the data controller to assess and ensure that the three cumulative conditions for invoking Article 6.1.f) of the GDPR as a legal basis are all met for the envisaged processing activities”; bolded by the Contentious Chamber).

65 See also: KOTSCHY, W., “Article 6 Lawfulness of processing” in KUNER, C., BYGRAVE, L. A., DOCKSEY, C., and DRECHSLER, L., The EU General Data Protection Regulation (GDPR): a commentary., Oxford, Oxford University Press, 2020, (321)331 at 338.

66 FRENZEL, E.-M., “DS-GVO Art. 6” in PAAL, B.P., and PAULY, D.A., Data Protection Regulation Federal Data Protection Act, C.H. Beck, Ed. 3, (108)124, § 31.

67 The EDPB also explicitly states as a principle the requirement for documentation: EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), V.1.0, October 8, 2024, § 12.

Decision on the merits 07/2025 — 26/40

II.4. Transparency and information obligations regarding the creation of a joint venture

II.4.1. Inspection Service Investigation

107. Regarding this aspect, the Inspection Service examined what obligations were incumbent upon the defendant concerning transparency and information provisions under the GDPR "prior to the

transfer of the complainant's personal data to HORS BV."

108. First, the Inspection Service addresses compliance with the general information obligation through the defendant's privacy policy.

109. On this occasion, the Inspection Service takes two screenshots of the first and second versions of the defendant's privacy policy in which it provides information on transfers in the context of mergers, specifically referring to "joint ventures" (in both versions, this is section 3.4 of the privacy policy).

110. Secondly, the Inspection Service outlines the "specific information obligation" in light of the transfer of personal data to HORS. The Inspection Service believes that this obligation has not been fulfilled and considers that compliance with the specific information obligation is insufficient in this regard.

II.4.2. Defendant's viewpoint

111. In its conclusions for the Litigation Chamber, the defendant succinctly states the following:

a) It is not clear what violations are being alleged against it under Article 12 or Article 13 of the GDPR;
b) The fact that the transfer (characterized as a "merger" by the Inspection Service) was not communicated to the data subjects cannot, according to the defendant, in itself constitute a violation of the GDPR - the defendant also refers in this regard, as a secondary point, to HORS, which, under Article 14 of the GDPR, should fulfill its information obligations due to the indirect acquisition of the data;

c) The defendant asserts that the transfer to a joint venture (HORS) could have fallen within the reasonable expectations of the data subjects, referring to the privacy policy that was in effect at that time and which still mentioned that a transfer in the context of business transactions was possible, explicitly citing a joint venture;

d) The defendant specifies that the information obligation has not been violated because (i) the data subject did indeed receive information regarding the potential transfer, rights, and possible consequences in the privacy policy as well as through public information (news articles), (ii) the Inspection Service puts forward vague legal grounds such as increased awareness and expectations regarding transparency since the adoption of the GDPR, and (iii) the fact that a (still) better communication of information does not ipso facto mean that the actions taken would be insufficient.

II.4.3. Assessment by the Litigation Chamber

a) Preliminary: the alleged lack of precision of the alleged violations

112. The defendant claims in its conclusions to the Litigation Chamber that it does not clearly know what is specifically being alleged against it - referring both to the Inspection Service report and to the invitation from the Litigation Chamber to present its conclusions.

113. The argument regarding the lack of precision concerning the alleged grievances is unfounded for the following reasons:

114. First: in its conclusions, the defendant states that finding 4 of the Inspection Service report "makes no mention of Article 12 or Article 13 of the GDPR, except in the title (...)".

In the conclusions regarding this finding 4 (thus not the title), it can be read: "Based on these elements, the Inspection Service finds that this processing activity by [the defendant] involves a violation of Articles 5.1 a), 12, and 13 of the GDPR."⁶⁸

In fact, it is not accurate that the legal provisions (as far as this could be a relevant argument) are mentioned only once in the investigation report. Furthermore, the terms "transparency" and "information" appear multiple times under this title 4 in the inspection report.

115. Second: in the 'preliminary remark' of the Inspection Service regarding finding 4, it clearly states: "The transparency and information provisions prior to the transfer of the complainant's personal data to HORS BV do indeed constitute the subject of the underlying complaint."⁶⁹

The Inspection Service has thus framed and precisely delineated the finding as a whole - and its investigative results in this regard in particular.

⁶⁸ Administrative file, document 40, investigation report, p. 37.

⁶⁹ Administrative file, document 40, investigation report, p. 32; bold and underlining in the text by the Inspection Service.

116. Thirdly: the Inspection Service also clearly explained the facts for which it found a violation of the obligation of information and transparency: "Users of Jobat and the complainant were therefore not informed in advance of the merger but were only informed through the privacy policy of Mediahuis SA (see above), thus only after the merger had taken place. The Inspection Service considers that Mediahuis SA did not process the personal data of the complainant in a transparent manner towards him, as required by Article 5.1.a) of the GDPR."⁷⁰

117. Fourthly: in its invitation to submit conclusions, the Litigation Chamber also emphasizes: "In the aforementioned report of the Inspection Service, it is noted that the defendant would have violated the following provisions of the General Data Protection Regulation (hereinafter: "GDPR") [...] Violation of Articles 5.1.a), 12, and 13 of the GDPR (obligation of information and transparency regarding transfers to third parties)."⁷¹

118. Fifthly: upon reading the administrative file and the inquiry questions from the Inspection Service in its final phase of investigation, the factual aspects that were questioned and for which issues were identified regarding obligations of information and transparency also clearly emerge.

119. Several very concrete and clear factual elements indicate that the argument related to imprecise grievances cannot reasonably be upheld. Furthermore, it is evident from the concrete defense put forward by the defendant that they indeed understood what was being alleged. For all the reasons stated above, the Litigation Chamber concludes that this procedural argument regarding the imprecision of the grievances cannot be followed.

b) Obligations of Transparency and Information: Principles and Legal Provisions

120. Previously in the decision, the Litigation Chamber has already clarified that the transfer of personal data by the defendant to HORS constituted processing that may rely on Article 6.1.f) of the GDPR. Regardless of the legal basis, it is also important to provide the data subjects, in a transparent manner, with information related to each processing.

121. The principle of transparency is one of the fundamental principles in the context of the processing of personal data under Article 5.1.a) of the GDPR and also constitutes an externalization of the principle of fairness in light of personal data processing - this principle is also included in Article 8 of the Charter of Fundamental Rights of the European Union.⁷²

⁷⁰ Administrative file, document 40, investigation report, p. 36-7, emphasis in the text by the Litigation Chamber.

⁷¹ Administrative file, document 42, letter of conclusion by registered mail from the Litigation Chamber.

⁷² Regarding the link between the principle of fairness (Translator's Note: or "equity" in the sense of the guidelines) ("fairness") and the principle of transparency, see the Article 29 Working Party on data protection (predecessor in law of the EDPB),

122. The defendant is informed of this obligation of transparency and this obligation of information, as she explicitly states in her reply submissions (in the context of balancing interests under the three-step test, in accordance with Article 6.1.f) of the GDPR):

"The data subjects will receive information about this transaction as well as about the processing that will take place in this context. This is an obligation under civil law (when a contract is transferred) as well as under the right to data protection."

123. Under Article 13.1 of the GDPR, crucial elements must be provided in terms of information at the time of collecting personal data:

- a) the identity and contact details of the data controller and, where applicable, the representative of the data controller;
- b) where applicable, the contact details of the data protection officer;
- c) the purposes of the processing for which the personal data are intended as well as the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the data controller or by a third party;

e) where applicable, the fact that the data controller intends to transfer personal data to a third country or to an international organization, and the existence or absence of an adequacy decision issued by the Commission or, in the case of transfers referred to in Articles 46 or 47, or Article 49(1), second subparagraph, the reference to appropriate or suitable safeguards and the means of obtaining a copy or the place where they have been made available." (emphasis added by the Contentious Chamber)

124. Under Article 13.2.b) of the GDPR, it is important that data controllers also provide additional information, including information regarding "the existence of the right to request the data controller for access to personal data, the rectification or erasure thereof, or a restriction of processing concerning the data subject, or the right to object to processing and the right to data portability." (emphasis added by the Contentious Chamber)

125. Under Article 12.1 of the GDPR, this information must also be communicated "[...] in a concise, transparent, intelligible and easily accessible form, using clear and plain language [...]."

Guidelines on Transparency under Regulation (EU) 2016/679, rev. 1.0, April 11, 2018, available via the following link:

https://www.edpb.europa.eu/system/files/2023-09/wp260rev01_fr.pdf, § 2.

Decision on the Merits 07/2025 — 30/40

c) Necessity of Transparency and Information for the Disputed Transfer

126. First and foremost, the Contentious Chamber addresses the most crucial aspects related to information in this case and the timing of the communication of this information. Regarding the information, the Contentious Chamber notes that the identity of HORS as (future) data controller has not been communicated anywhere to the data subjects prior to the transfer. HORS has indeed only existed since 2019.

127. There is no doubt that the fact that there is another data controller taking over the execution of the contract constitutes information that is not only interesting but also crucial. This information must therefore be communicated to the data subject before any transfer takes place.

128. Regarding the principle of transparency, Recital 39 of the preamble of the GDPR explicitly states: "This principle applies, in particular⁷³, to the information provided to data subjects about the identity of the data controller [...]" (emphasis added by the Contentious Chamber)

129. In its Guidelines on Transparency under Regulation (EU) 2016/679, the Article 29 Working Party on Data Protection also literally specifies that any substantial change made to the privacy notice must always be communicated to the data subjects:

"Changes to a notice or privacy statement must always be communicated to the data subject, including: a change in the purpose of the processing; a change in the identity of the data controller; or a change in the way data subjects can exercise their rights regarding the processing." (emphasis added by the Contentious Chamber)⁷⁴

130. In this sense, the communication of the new identity of the data controller should have taken place before the disputed transfer itself, in order to give the data subjects a reasonable period to potentially oppose the transfer.⁷⁵

131. Secondly, the Contentious Chamber notes that Article 13.1.c) of the GDPR mentions that the "legal basis" for the processing must be communicated to the data subjects.

⁷³ In the English version: "in particular", in the French version: "notamment", and in the German version: "insbesondere".

⁷⁴ Article 29 Working Party on Data Protection, Guidelines on Transparency under Regulation (EU) 2016/679, rev. 1.0, April 11, 2018, § 29.

⁷⁵ This would therefore indeed be after the conclusion of the asset deal (asset transfer).

Decision on the Merits 07/2025 — 31/40

concerned parties.⁷⁶ If processing occurs on the basis of legitimate interest, these interests must, in accordance with Article 13.1.d) of the GDPR, also be communicated to the data subject. Since the specific transfer (Schema I, transfer referred to in point 5) was not to be based on the contract with the data subject but rather on another legal basis, the defendant was required to inform the data subjects. In accordance with the fourth version of the privacy policy, the defendant indeed mentions legitimate

interest as a possible legal basis for a transfer in the context of the creation of a joint venture.⁷⁷ 132. When, in the context of processing based on Article 6.1.f) of the GDPR, data subjects are informed of the legal basis, the data controllers must also specify (i) what legitimate interests are involved, in accordance with Article 13.1.d) of the GDPR, and (ii) that there is a possibility to object to the transfer in accordance with Article 13.2.b) of the GDPR.

d) Evaluation of the Concrete Communication of Information During the Disputed Transfer - Violation 133. Since it is clear that several pieces of information should indeed have been provided by the defendant to the data subjects, the Contentious Chamber examines whether the information actually communicated is sufficient. The specific situation of the transfer indeed requires a specific adherence to the information obligations.⁷⁸

134. The DPO of the defendant - who is also the DPO of HORS - specified the following to the Inspection Service:

"... as indicated ... Mediahuis and/or HORS did not inform users of Jobat (including the complainant) in advance regarding the merger between Vacature (DPG Media) and Jobat Media (Mediahuis) or regarding the transfer of their data to HORS. Since HORS obtained the data indirectly, Article 14 of the GDPR applied, and the required information could be communicated to the data subjects after [] obtaining (and thus the transfer)."

⁷⁶ See also: EDPB, Guidelines 1/2024 on processing of personal data based on Article 6(1)(f), V.1.0, October 8, 2024, § 67.

⁷⁷ Administrative file, defendant's reply conclusions, p. 20; also document C.6 in the same reply conclusions; during the investigation by the Inspection Service, the latter made findings regarding the second and third versions of the privacy policy.

⁷⁸ Regarding this specificity, see: ZANFIR-FORTUNA, G., "Article 13. Information to be provided where personal data are collected from the data subject" KUNER, C., BYGRAVE, L. A., DOCKSEY, C., and DRECHSLER, L., *The EU General Data Protection Regulation (GDPR): a commentary.*, Oxford, Oxford University Press, 2020, (413)426 e. s.

Decision on the Merits 07/2025 — 32/40

135. The defendant, in consultation with (its partner in) the joint venture HORS BV, did indeed take a measure to inform the data subjects through a general "pop-up":

This pop-up and the way it was drafted are clearly insufficient to appropriately inform the data subjects regarding the legal changes. A banner that addresses cookies and the acceptance of "terms" and does not once refer to the (amended) privacy policy or to a legal change related to the transfer can hardly be deemed appropriate for informing the data subjects about a transfer of their personal data.

136. Furthermore, the defendant claims that the cookie banner that periodically appears on the websites of all its brands explicitly links to the privacy policy and that data subjects can learn about any changes there. A banner that only generally refers to a privacy policy and primarily serves to obtain consent for cookies cannot serve as an appropriate means to provide information for the disputed transfer.

137. Moreover, the above indicates that the defendant was aware that information regarding the transfer could be useful and relevant for the concerned users, but it appears from the terms used in the information provided that the defendant failed to communicate sufficiently clear information.

138. Additionally, the Contentious Chamber emphasizes that, in any case, no information is communicated to data subjects who are not active on the Jobat website or other websites of the defendant's brands.⁸⁰ It is precisely these data subjects who might particularly wish to object to the transfer because they may no longer wish to keep their Jobat account or for any other legitimate reason.

⁷⁹ Administrative file, document 35, partial excerpt from Annex 7 to the DPO's response.

⁸⁰ Regarding the impact of circumstances on the communication of information, see: Article 29 Working Party on Data Protection, *Guidelines on Transparency under Regulation (EU) 2016/679*, rev. 1.0, April 11, 2018, § 24 e.s.

Decision on the Merits 07/2025 — 33/40

139. The Contentious Chamber emphasizes that the provision of information does not mean that the communicated information is adequate according to the applicable provisions of the GDPR.

140. Although the data subjects may indeed assume that the activities are continued (as the privacy policy already stated before the establishment of HORS), the Contentious Chamber notes that the data subjects can expect to be informed and that the data subjects have the possibility, in this context, in particular (i) to obtain further information under Article 13 of the GDPR (specifically regarding the identity of the data controller, the legal basis for a transfer such as the disputed transfer, as well as the identification of legitimate interests in this context), in order to subsequently, as a consequence of this information, object under Article 21 of the GDPR, and (iii) to request the erasure of their personal data under Article 17 of the GDPR.

141. In this context, it is extremely important that the data subjects are actively informed prior to a transfer such as in this case. It is not for the defendant to determine for the data subjects that a situation changes solely from a "legal-technical" perspective; the obligations of information and transparency are by no means less applicable in such cases.

142. The Contentious Chamber finds that the defendant violates Article 5.1.a), Article 12.1 in conjunction with Article 13 of the GDPR as it provided insufficient information to the data subjects prior to the transfer of personal data to HORS during the establishment of this joint venture for the continuation of the "Jobat" activities.

III. Measures

III.1. Specific Considerations Regarding the Administrative Fine: Constructive Collaboration of the Defendant and its DPO

143. The Contentious Chamber has taken into account the case law of the Court of Justice, which states that an administrative fine can only be imposed when there is a matter of deliberate action or negligence on the part of the data controller. In this case, there is indeed evidence of negligent behavior on the part of the defendant - namely regarding the failure to communicate information to the data subjects. The European legislator establishes as a principle an application

81 Administrative file, document 35, response of the DPO to question 9.

82 Judgment of the CJEU of December 5, 2023, Deutsche Wohnen, C-807/21; Judgment of the CJEU of December 5, 2023, Nacionalinis visuomenės sveikatos centras, C-683/21.

Decision on the Merits 07/2025 — 34/40

strict⁸³ of the GDPR within which fines pursue a deterrent effect⁸⁴.

144. The negligent behavior is somewhat mitigated given that, in practice, the consequences of the violation had a limited effect on the individuals concerned. This, coupled with the fact that some time has passed since the beginning of the administrative procedure and the submission of the latest conclusions by the defendant—without this, in itself, being a sufficient reason to conclude against the imposition of a fine—the Contentious Chamber decides not to impose an administrative fine.

145. The Contentious Chamber further wishes to emphasize that the data protection officer ("DPO") of the defendant responded in a particularly detailed and constructive manner to all requests made by the Inspection Service during the investigation. Thus, the defendant notably provided documentation and explanations to the Inspection Service regarding (i) the mutual arrangement of the data controllers concerning the processing of personal data between the defendant and HORS, (ii) clarifications regarding the architecture of the infrastructure such as its data centers, and (iii) a description of the role of the DPO.⁸⁵ The presence of the DPO at the hearing before the Contentious Chamber was also helpful, particularly in explaining the number of requests under the GDPR that would have been addressed to the defendant or to HORS in the context of the creation of the joint venture.

146. The obligation to cooperate is enshrined in law⁸⁶, and it is crucial for the supervisory authority to fulfill its missions and exercise its powers diligently. This is also why the opposite behavior (non-cooperation) has been subjected to sanctions by the European legislator.⁸⁷ It is nevertheless important to explicitly recognize the cooperation of the defendant in this case and to highlight its openness towards the supervisory authority.

147. Finally, it is emphasized that the choice to use the present sanctioning instruments cannot be further mitigated based on what is submitted here and with knowledge of what the defendant has put

forward in this regard (notably "the attitude of the complainant" and "the limited consequences of the violation for the complainant").⁸⁸

83 Recital 7 of the preamble of the GDPR.

84 Recitals 151 and 152 of the preamble of the GDPR and Article 83.1 of the GDPR.

85 Administrative file, document 25 ("response from the DPO of Mediahuis"): see the annexes contained therein.

86 Specifically in Article 31 read in conjunction with Recital 82 of the preamble of the GDPR; see also the obligations (of justification) in Articles 5.2, 24, and 25 of the GDPR.

87 A violation of Article 31 of the GDPR in particular is subject, under Article 83.4.a) of the GDPR, to administrative fines of up to EUR 10,000,000 or 2% of the total global annual turnover achieved during the previous financial year.

88 Administrative file, document 45, conclusion of the defendant, 5th plea.

Decision on the Merits 07/2025 — 35/40

III.2. Reprimands

148. Everything stated above regarding the obligation to cooperate does not prevent the finding that the defendant made an error in its assessment of the circumstances of the transfer following an asset deal governing the creation of a joint venture. In its assessment, the defendant did not sufficiently take into account the interests of the individuals concerned and did not qualify or treat a distinct treatment as such.

149. Nevertheless, the defendant can effectively assert its legitimate (commercial) interests within the framework of an asset deal, as evidenced by the favorable outcome of the three-step test for the defendant under Article 6.1.f) of the GDPR. In this regard, the defendant should have conducted its assessment in light of Article 6.1.f) of the GDPR prior to the transfer in order to inform the individuals concerned of its intention to proceed with the transfer.

150. In any case, the absence of the prior three-step test and documentation thereof allowing for a valid invocation of Article 6.1.f) of the GDPR constitutes a violation of Article 6.1.f) of the GDPR for which the Contentious Chamber reprimands the defendant.

151. The Contentious Chamber also reprimands the defendant for the violation of Article 5.1.a), Article 12.1, and Article 13 of the GDPR, for failing to respect the obligations of transparency and information in light of this transfer and prior to it.

III.3. Injunction for Compliance with Processing

152. The Contentious Chamber acknowledges that the measure comes some time after the violation and that its useful effect may be somewhat diminished. In itself, the information should indeed have been provided within a reasonable time prior to the disputed transfer. Nevertheless, it remains relevant for the individuals concerned to be informed of the change in the data controller, for example, if they were to oppose the transfer (of which they were previously unaware) and possibly wish for their personal data to be deleted at HORS, and the Contentious Chamber therefore imposes an injunction.

153. It should be emphasized in this regard that Article 12.1 of the GDPR specifies that information may be provided electronically, "where appropriate." It appears at first glance that users typically contact the services offered via the Jobat website and communicate their email address there. It therefore seems appropriate at first glance to provide the necessary information to the individuals concerned through this means—without asserting that the defendant's choice would be limited to this method.

Decision on the Merits 07/2025 — 36/40

154. As also indicated in the aforementioned guidelines on transparency, it is crucial that a notification be actively addressed to the individuals concerned regarding the change in the identity of the data controller. Given that this information was not provided previously—and particularly not before the transfer—it is essential that the active communication to the individuals concerned also mentions that they retain the right to exercise their rights under the GDPR if they wish to terminate their user contract.⁸⁹

155. The injunction is therefore concretely worded as follows:

The Contentious Chamber orders the defendant to organize, within four months following knowledge of

this decision, an active communication to all existing users of the Jobat services. The defendant must in particular take all necessary measures to ensure that it can, either itself or based on contractual agreements with third parties—such as with HORS, of which the defendant is the majority shareholder—inform the individuals concerned post factum of the transfer. These measures should particularly include active notification, for example, by means of an individually addressed email to the concerned users, communicating in particular the identity of the new data controller and indicating where to find further information and how the individuals concerned can exercise their rights under the GDPR (by subsequently redirecting the interested parties to the relevant web pages). Within the same four-month period from the notification of this decision, the defendant shall inform the Contentious Chamber of the measures taken by means of a summary document.

156. At the end of these four months, the Contentious Chamber will make a decision regarding compliance with this decision.

157. If the defendant can demonstrate that full compliance within the given timeframe is impossible despite all reasonable efforts, it has the option to submit a reasoned request for an extension to the Contentious Chamber before the expiration of the deadline.

IV. Provisional Execution

158. In its conclusions and during the hearing, the defendant requests the suspension of provisional execution, specifically on the grounds that it may have to make some

89 Regarding the need for appropriate modalities for the communication of information: Article 29 Working Party on Data Protection, Guidelines on Transparency under Regulation (EU) 2016/679, rev. 1.0, April 11, 2018, § 29.

Decision on the merits 07/2025 — 37/40

"significant adaptations"

to
the
privacy
policy.
This
would
entail

"considerable investments in time and costs."

159. The Contentious Chamber rejects the request for a stay of execution for the following reasons.

160. First, the provisional execution provided for in Article 108, § 1, second paragraph of the LCA is the standard situation for the national legislator. This provision indeed states that the decisions of the Contentious Chamber are provisionally enforceable, except in two alternative and specific cases. The European legislator has granted the supervisory authority the competence to take measures: it is therefore the authority that decides which (corrective) measure is most appropriate to – if necessary – prompt the defendant to react or impose that measure on them.⁹⁰

161. The fact that an appeal is possible to a judicial instance after any decision in this matter does not affect the powers of the authority. In light of the separation of powers, the judiciary must assess a posteriori whether the supervisory authority acted within the legal framework and within its discretionary powers. When the judge exercises their own power to suspend execution, it is a decision falling within their evaluative competence.

162. Given the credibility of the powers that the European and national legislators have entrusted to the authority, the standard situation cannot be the suspension of the execution of decisions and measures taken by an authority, as soon as a party requests it. Indeed, if this were the standard situation, it would undermine the entire intention of the legislator to act vigorously and effectively in a digital society. This does not correspond to the teleological conception of the powers granted to the authority under the GDPR. In this sense, it is indeed the intention of both the European legislator and the Belgian legislator that a party against whom the Contentious Chamber takes measures complies without excessive delay with the decisions of the authority.

163. Second, the Contentious Chamber emphasizes that the injunction formulated in this decision

essentially consists of informing the concerned individuals about a transfer of personal data, starting with the communication of this information electronically. The defendant can hardly (potentially) argue that such communication of information would constitute an unreasonable purpose, or that its implementation would cause significant harm.

90 Judgment of the CJEU of December 7, 2023, UF and AB v. Land Hessen (Schufa), joined cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, specifically § 68. This is of course the initial judgment concerning such measures, and not the question regarding full jurisdiction in the event of an appeal.

Decision on the merits 07/2025 — 38/40

164. If heavy measures are imposed on a defendant, for example in a situation where the law is clearly not clear⁹¹, the suspension of execution could well be considered, which is why the legislator has provided for this optional option.

V. Publication of the decision

165. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority.

166. Since the defendant is a large media company and the disputed processing (related to Jobat services) concerns a significant part of the Belgian population, the Contentious Chamber decides to publish the decision without omitting the identifying data of the defendant.

167. To give a useful effect to this publication, it is also important to identify the other companies or brands involved. The Contentious Chamber emphasizes in this regard that by this decision, no violation is found on the part of the companies concerned - other than the defendant (and no corrective measure is taken against them).

91 Considering that the Contentious Chamber cannot submit a preliminary question to the competent judicial authorities.

Decision on the merits 07/2025 — 40/40

Such an appeal can be introduced by means of a contradictory request that must include the mentions listed in Article 1034ter of the Judicial Code⁹². The contradictory request must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code⁹³, or via the e-Deposit computer system of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

92 "The request contains under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, domicile of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, domicile and, where applicable, the quality of the person to be summoned;

4° the subject and a brief summary of the grounds of the request;

5° the indication of the judge who is seized of the request;

6° the signature of the applicant or their lawyer."

93 "The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry."